

received the proceeds would be accountable as a trustee (*d*), and the *cestui que trust* may, upon seizure by the sheriff, establish his equitable title at law upon an interpleader summons (*e*).

On the other hand, if a person be the *cestui que trust* of an equitable chattel, the sheriff may take it in execution for the debt of the *cestui que trust*; and this is so even when the *cestui que trust* claims under an agreement for valuable consideration for the settlement of after-acquired property (*f*). But such an agreement is a roving one and executory, and does not give the *cestui que trust* the privileges of the specific purchaser until actual possession of the chattel under the agreement, and the interest of the *cestui que trust* may therefore be defeated by a judgment creditor of the settlor, who takes out execution before actual possession by the *cestui que trust* (*g*).

6. **The common law recognizes assets in the hands of an executor to be trust property.** — *Assets* in the hands of an *executor* are regarded as a species of trust property, even by the common law, which in respect of them has engrafted upon itself a *quasi* equitable jurisdiction: as, if an executrix marry, she may by will, without the consent of her husband, appoint an executor in whom the assets will vest, and * who will thus become the executor of the original testator (*a*); and though the husband during the coverture has power to dispose of the assets in the course of administration (*b*), he will not be entitled to them in his marital right by survivorship (*c*); and if the wife survive she is liable for the devastavit committed by her hus-

per *Ashurst, J.*, and see *Blake v. Done*, 7 H. and N. 465, and p. 245, *post*, as to judgments. See now 36 & 37 Vict. c. 66, s. 24.

(*d*) *Foley v. Burnell*, 1 B. C. C. 278.

(*e*) *Duncan v. Cashin*, 10 L. R. C. P. 554.

(*f*) *Interpleader Summons*, W. N. 1875, p. 203; W. N. 1876, p. 64.

(*g*) *Holroyd v. Marshall*, 2 De G. F. & J. 596.

(*a*) *Scammel v. Wilkinson*, 2 East, 552; *Hodsdon v. Lloyd*, 2 B. C. C. 543, *per* Lord Thurlow.

(*b*) *Thrustout v. Coppin*, 2 W. Black. Rep. 801; [this will not be the case where the marriage has taken place or the executorship has arisen since 1st January, 1883, 45 & 46 Vict. c. 75.]

(*c*) Co. Lit. 351 a, 351 b: *Stow v. Drinkwater*, Loft, 83.